

Hindustan Copper Limited
Corporate Office
Kolkata

No. SCY/DoP/24-25/02

Date: 09.10.2024

OFFICE ORDER

Sub: Delegation of Powers of Unit Heads and HoDs at CO (for tender matters)

The revised Delegation of Power of Unit Heads and HoDs at CO (for tender matters) is enclosed herewith (**Annexure**) which comes into force with immediate effect.

This shall supersede Office Order No. SCY/DELE/HO/05-06 dated 8.7.2021 issued in this regard, its Amendment issued vide Office Order No. SCY/DELE/HO/05-06 dated 7.12.2021 and Corrigendum issued vide Office Order No. SCY/DELE/HO/05-06 dated 11.1.2023.

This has approval of the competent authority.



(C S Singhi)
Company Secretary &
Compliance Officer

Encl: As stated

To,
All Unit Heads
All HoDs at CO

CMD [Addl. Charge] & Director (Finance)
Director (Mining) & Addl. Charge Director (Operations)

} for kind information

Annexure to Office Order No. SCY/DoP/24-25/02 dated 09.10.2024

Delegation of Power of Unit Heads MCP, KCC & ICC

Sr. No.	Nature of Power	Delegation of Power of Unit Heads MCP, KCC & ICC
A. Works Contract / Mines Contracts /CAPEX/ Manpower Contracts (including Security)/ Procurement of Stores and Spares/ Transportation / Service Contract		
1	Open Tender Enquiry (OTE)	
	(i) More than one valid tender received & technically accepted	Up to Rs.200 Lakh
	(ii) Only one tender is received & technically accepted	Up to Rs.20 Lakh
2	Limited Tender Enquiry (LTE)	
	(i) More than one valid tender received & technically accepted	Up to Rs.100 Lakh
	(ii) Only one tender is received & technically accepted	Up to Rs.20 Lakh
3	STE (For OEM/ Proprietary)	Up to Rs.15 Lakh
4	Acceptance of Contract without calling for LTE or Open Tender in emergent cases, reasons to be recorded in writing	Up to Rs 2 Lakh (Limited to Rs.20 Lakh in one financial year)
5	Acceptance of single offer of PSUs	Up to Rs 100 Lakh
#	Procurement of capital items (50% of the Powers mentioned at Sr. No. 1 to 5)	(1) Capital items should be covered under CAPEX Budget. (2) Procurement of following items will require approval of CMD: (a) Electronic gadgets (Mobile Phone, Desktop , Laptop, Computers, Printers etc), (b) Fridge, TV, Furniture, Geyser, AC, Cooler etc for office/Guest House/DB, exceeding Rs.10,000/- (c) Immovable items such as building / construction of building, land / development of land . (3) Monthly Report for procurement of capital items to be submitted to Director (Finance), Director (Mining) and Director (Operations) within 10 days of next month with justification of procurement.
6	Consultancy Contract	Up to Rs 5 Lakh



Sr. No.	Nature of Power	Delegation of Power of Unit Heads MCP, KCC & ICC
B. Repeat order for all Contracts		
1	Repeat order for existing order : up to 50% quantity & value of the original order as per NIT only when	
	(i) Repeat order clause must be mentioned in NIT (ii) Original orders placed on higher prices for earlier delivery and emergency orders shall not be considered (iii) Normally to be processed 3 months prior to the expiry of the original contract (iv) No price escalation for firm price orders shall be given (v) No downward trend in the rates and the performance of the party is satisfactory (vi) Not more than one repeat order should be placed. (vii) Existing order is not expired (viii) Existing order approved at unit level (There should be no repeat order clause for development/trial orders.)	Up-to 50% quantity/ value of the original order, subject to limit of Delegation of power of Unit Head considering original quantity/ value + proposed extended quantity/ value.
C. Extension of Time (EoT) (provided no loss is sustained by the Company)		Up to 25% of Original Time (without change in Quantity / Value / Escalation in the contract) within the limit of his delegation of power
D. Refund of LD/Penalty (where no loss is suffered by the Company due to the delay and where LD was later on ascertained not applicable)		Nil



Delegation of Power of Unit Heads MCP, KCC & ICC

Sr. No.	Nature of Power	Delegation of Power of Unit Heads MCP, KCC & ICC
E. Establishment		
1	Appointment	Full power up to E-0 level subject to prior administrative approval of CO and also post appointment intimation to CO/HR.
2	Promotion	Full power for E-0 level and below subject to prior administrative approval of CO and also post promotion intimation to CO/HR.
3	Transfer of Officers and Staffs	Full power up to E-6 level Employees (within the Unit). (Case of transfer of E-5 & above level Employee to be intimated to the concerned Director & Corporate HR Department). Intimation to CO/HR for internal shuffling.
4	Termination of Service	Full power up to E-0 level with the approval of the Appointing Authority.
5	Acceptance of Resignation	Full power up to E-0 level.
6	Disciplinary powers	Full power in respect of E-4 level employees and below. Clarifications: Full power in respect of E-0 to E-4 employees to Controlling Authority as per Standing Order (SO) & CDA. For workmen, as defined in SO.
7	Appellate Authority	Project / Units Head will be the Appellate Authority in all cases where the Controlling Authority is the Disciplinary Authority. This will, however, not apply to those cases (of E-1 and above Officers) where he himself is the Disciplinary Authority.
8	Fixation of initial pay	Full power up to E-0 level.
9	Extension of joining time	Full power up to 30 days, up to E-0 level.
10	Clearance of probation	Full power up to E-2 level employees.
11	Fixation of pay on promotion	Full power (intimation to be sent to Corporate HR Department in respect of E-1 and above Officers).
12	Grant of Leave for officers and staff working under him	Full power for officers and staffs under his control. For leave of GM/ DGM under him, intimation to be given to concerned Director.
13	Grant of TA to candidates called for interview or joining duty on initial appointment	Full power as per rules.



Sr. No.	Nature of Power	Delegation of Power of Unit Heads MCP, KCC & ICC
14	Approval of Tour programmes and advance for officers and staffs	Full power for officers and staffs under his control. For tour of GM/ DGM under him, intimation to be given to concerned Director.
15	To allow employee to travel by next higher class of accommodation than entitled class	Full power as per rules with report to CO. To be checked with the provisions in IoM for Air Travel approvals by CMD.
16	All matters relating to TA/DA for officers / staff under their control	Full power for officers and staffs under their control.
17	Reimbursement of legal expenses incurred by employees for company's work	Full power, when proceedings have arisen out of the affairs of the Company.
18	Reimbursement of medical expenses as per the rules including his own claim	Full power as per rules.
19	Grant of ex-gratia payment to employees	Full power up to Rs. 500/- in each case subject to an annual limit of Rs. 5,000/-.
20	Payment to employees arising out of statutory enactments and rules, regulations etc. thereunder.	Full Power
21	Sanction of advance (imprest)	Full power up to Rs.15,000/- in any individual case including to Mines Manager for safety & associated purposes.
22	To fix instalments for recovery of over-payment of pay and allowance	Full Power
23	Payment of Gratuity	Full Power
24	To engage casual / badli workers on daily basis against leave vacancy	Full power at approved rates.
25	Investigation of arrear claim	Full Power
26	To decide the headquarters and sphere of duty of all staffs under his control	Full Power
27	Permission to handover charges away from headquarters	Full Power
28	To decide the point of termination / commencement of journey	Full Power
29	Official entertainment	Up to Rs 20,000 /- in each case subject to a limit of Rs. 5 Lakh in one financial year
30	Sanction of temporary advance for specific purpose	Up to Rs.25,000/- for any specific event
31	Expenditure on ceremonial / official occasions, recreation, sports & festivals	Up to Rs 3 Lakh per year (Quarterly report to be sent to CO/HR Department)
32	To sanction residential telephones	Full Power
33	Advertisement & Publicity Charges	Up to Rs. 2.50 Lakh per year
34	Sanction of Expenditure for staff welfare	Up to Rs 20,000/- in each case subject to an annual limit of Rs. 1 Lakh
35	To sub-delegate powers to subordinate officers including signing of statutory invoices	Full Power

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F. Miscellaneous		
1	Constitution of Tender Opening / Evaluation Committee	Full Power within the delegated financial powers for respective cases as applicable
2	To sanction write-off of losses not due to theft, fraud or negligence (with financial concurrence)	Full Power up to Rs 10,000/- in each case provided the loss is not caused by carelessness, dishonesty of employees
3	To sanction write-off of losses due to theft or negligence subject to enquiry (with financial concurrence)	Full Power up to Rs 5,000/- in each case where it is not possible to affect recovery
4	Write off shortage of articles of dead stock, losses of stores, tools and plants	Full Power up to Rs 10,000/- in each case provided the write-off is not caused by negligence, carelessness or dishonesty of employees (Cases over Rs 2,000 /- to be reported to HO)
5	To institute conduct and defend any legal proceedings by or against Company or its officers in connection with the affairs of the Company	Full Power
6	Execution of Contract, Agreements, Deeds and other instruments in the name and on behalf of the Company in respect of delegated areas / functions	Full Power
7	Execution of contracts & deeds (statutory in nature)	Full Power
8	Purchase of Stationery, Consumables, Books & periodicals etc	Full Power subject to budgetary limits
9	Maintenance/Repair of buildings, vehicles, office equipments, furniture, electrical appliances, fittings etc	Rs. 50,000/- in a month
10	Liveries & Clothing	Full Power subject to rules of the Company
11	Hiring of vehicles for official use (subject to budget approval)	Full Power
12	To send Company's vehicle outside the Headquarters for official purposes	Full Power
13	Hot & Cold weather amenities	Full Power
14	Rents, Rates & Taxes (for official work)	Full Power
15	Telephone, Electricity and water charges (for official work)	Full Power
16	Postages & Telegrams (for official work)	Full Power
17	Postages & Telegrams (for official work)	Full Power
18	To approve write -off/ fixation of Reserve Price / Sale / disposal of surplus and obsolete stores within the Policy	As per approved policy
19	To approve write -off/ fixation of Reserve Price / Sale / disposal of any other movable property which is obsolete in nature subject to write off action	As per approved policy



Delegation of Power	
I	Remarks for Works / Mines Contracts "Works/Mines" contract will cover any activity, sufficient in itself to fulfil an economic or technical function, involving construction, fabrication, repair, overhaul, renovation, decoration, installation, erection, excavation, dredging, and so on, which make use of a combination of one or more of engineering design, architectural design, material and technology, labour / manpower, Security, machinery and equipment. Supply of some materials or certain services may be incidental or consequential to and part of such contract. The term "Works/Mines" contract will include: (i) Civil works for the purposes of roads, railway, airports, shipping-ports, bridges, buildings, irrigation systems, water supply, sewerage facilities, dams, tunnels and earthworks; and so on, (ii) Mechanical and electrical works involving fabrication, installation, erection, repair and maintenance of a mechanical or electrical nature relating to machinery and plants and (iii) Services like hiring contracts, transportation contracts, engagement of travel agency, technical support services, renewal of license (including software) etc. <i>Note- Labour / Manpower contract will include contract for engagement of skilled, semi-skilled, unskilled mandays etc.</i>
II	(i) General Remarks (a) Unit Heads of TCP and GCP are entrusted with the power equivalent to 50% and 25% respectively of Delegation of Power of MCP, KCC and ICC mentioned under Section A, B, C, D, E and F with respect to Financial Powers. (b) HODs at Corporate Office (not lower than General Manager and related to their area of work) will utilize 25% of Delegation of Power of MCP, KCC and ICC mentioned under Section A, B, C and D with respect to Financial Powers. (ii) Except the items where specifically prescribed otherwise, the delegated powers shall be exercised with concurrence of the Finance Department for all matters having financial bearing exceeding Rs.5,000/- (Rupees five thousand only) in each case for Unit Heads and HODs at Corporate Office (not lower than General Manager). (iii) Further, all powers shall be exercised within the approved budget limits wherever applicable. (iv) All powers shall be exercised within the relevant provisions of Acts/Laws/Rules of the Country/State and the Policies/Procedures prevalent in the Company and within the frame work/guidelines of CMD/ Board. (v) The canons of financial propriety have to be followed by all the Officials while approving/ concurring the Delegation of Power. (vi) Capital expenditure includes purchase of fixed assets that will be used / will give benefit to the Company for more than one year (say purchase of vehicle, plant and machinery for business etc). The cost of an item of Property, Plant & Equipment will also include costs directly related to bringing the asset to the condition & location where it can operate as intended. Revenue expenditures are referred to as ongoing operating expenses for business purpose & the benefit of which expires within one year. (vii) If single offer is received or a single offer is found to be technically suitable against Open Tender Enquiry or Limited Tender Enquiry, such tender is also to be treated as a case of Single Tender (refer cl. no. 5.3.11 purchase manual). (viii) In an NIT wherein a number of items are proposed to be purchased which can be splitted, the NIT should clearly state by way of a clause under " Evaluation of Tender" that any Bidder can quote for a single item / multiple items and that evaluation of the tender will be done on L1 basis line item wise.